

		<u>Motion to Strike</u> Apple Defendants argue the punitive damages claim should be stricken due to lack of specificity. Because the Court has held that the fraudulent concealment cause of action is allowed to stand, the Motion to Strike punitive damages is DENIED. However, Apple Defendants are correct that Plaintiff has not identified any basis for his claim for attorney fees and Plaintiff has not addressed this deficiency in his opposition. Thus, the Motion to Strike the claim for attorney fees is GRANTED with 20 days leave to amend. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
103	Andrews vs. Thompson, 23-01211689	<i>Off-calendar.</i>
104	Lee vs. Kingsbury, 25-01472404	<i>Off-calendar.</i>
105	Simmons vs. Alter Domus, Inc., 24-01445636	<u>Motion to Compel Deposition</u> Defendants Alter Domus, Inc. and Chris San (collectively "Defendants") move the Court for an order compelling Plaintiff Nancy Simmons ("Simmons" or "Plaintiff") to attend an oral deposition. Defendants seek an order awarding monetary sanctions against Plaintiff in the total amount of \$10,272.05 for attorneys' fees and costs (including costs of court reporters). Here, Plaintiff admits that her deposition has been scheduled three times and she has not appeared. However, she asks for leniency due to family circumstances involving becoming the caretaker of her son who was in an accident. To that end, lead counsel to appear to meet and confer as to available dates for Plaintiff's deposition. Plaintiff to pay \$2,001.05 for the Court Reporter's costs.

To the extent Plaintiff fails to appear for her agreed upon deposition date, the Court reserves the right to impose the remaining \$8,200 in requested attorney's fees.

The Court orders the deposition to occur within the next 30 days and the sanctions for the Court Reporter's costs to be paid within the next 30 days. If the deposition does not occur on a mutually agreeable date, moving parties are granted leave to re-file a motion for sanctions seeking the remaining \$8,200 at issue here.

Other Discovery Motions

Defendants Alter Domus, Inc. and Chris San (collectively "Defendants") move the Court for an order compelling Plaintiff Nancy Simmons to respond to the following Defendants Requests for Production, Set One ("RFPs"), without objection. Defendants seek an order awarding monetary sanctions against Plaintiff in the amount of \$5,449.

Defendants Alter Domus, Inc. and Chris San move the Court for an order compelling Plaintiff Nancy Simmons to respond to the following interrogatories propounded by Defendants, without objection: 1. Special Interrogatories, Set One. Defendants seek an order awarding monetary sanctions against Plaintiff in the amount of \$5,295.

Defendants Alter Domus, Inc. and Chris San move the Court for an order compelling Plaintiff Nancy Simmons to respond to the following form interrogatories propounded by Defendants, without objection: 1. 2. Form Interrogatories - Employment, Set One; Form Interrogatories - General, Set One. Defendants seek an order awarding monetary sanctions against Plaintiff in the amount of \$4,534.

It appears the Motions are moot. Plaintiff declares under penalty of perjury, that, "Concurrent with the filing of this opposition, I have worked with my counsel to prepare and verify complete responses to" the discovery at issue herein, "without objections". (See Declaration(s) of Plaintiff Simmons.)

		The only remaining issue is sanctions. Here, the imposition of over \$14,000 in discovery sanctions would be “unjust”. Not only is the requested amount clearly overreaching for three simple motions to compel, but Plaintiff established that her inability to respond was due to a family emergency. (See Declaration(s) of Plaintiff Simmons¶8.) Therefore, the Court will not order sanctions. <i>Defendant to give notice.</i>
106	Lam vs. Robert Mullins International, 24-01438837	Defendant Robert C. Mullins (“Defendant”) demurs to the entire Complaint. The Complaint contains the following six causes of action: (1) breach of contract, (2) negligent misrepresentation, (3) breach of fiduciary duties, (4) breach of implied covenant of good faith and fair dealing, (5) negligent infliction of emotional distress, (6) violation of Business & Professions Code section 17200 et seq. All causes of action are asserted against all Defendants. The Complaint was filed on 11/08/2024. On 08/14/2025, Plaintiffs amended their Complaint to add Robert C. Mullins as Doe Defendant 1. (ROA 51.) Defendant argues that Plaintiffs’ first cause of action for breach of contract fails because Plaintiffs have not alleged a contract between Defendant Robert Mullins and Plaintiffs. Similarly, Defendant argues that the second, third, fourth, fifth, and sixth causes of action fail against Defendant Robert Mullins because Plaintiffs have not alleged any wrongs that Defendant Robert Mullins committed in his individual capacity. The Court agrees. Exhibit A to the operative Complaint is an “IMMIGRATION CONSULTANT SERVICE AGREEMENT” between Robert Mullins International (RMI), called Immigration Consultant,” and Dai Trang LAM, called “client.” Thus, the only contracting parties are Plaintiff Dai Trang Lam and Defendant Robert Mullins International and therefore